

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

COLLIS AUGUST,

Plaintiff,

Summons

-against-

**Index No.
Purchased:**

**NEW YORK CITY, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER Jorge Santacruz,
SHIELD 16558 and LEUTENANT Joseph Pizzuto,
TAX# 947458 and SERGEANT Alcaraz of the New York
City Police Department, Individually and as employees of
the New York City Police Department, COSTCO
WHOLESALE CORPORATION a/k/a COSTCO
WHOLESALE MEMBERSHIP, INC., and LOSS
PREVENTION agent Guylin A. Raymond,**

**Plaintiff designates
Kings County
as the Place of Trial**

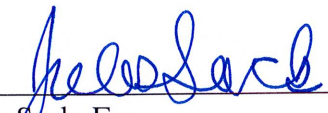
*The basis of venue is:
Where the cause of action
arose*

Defendants.

To the above named Defendants

You are hereby Summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
April 3, 2015



Jules Sack, Esq.
Attorney for Plaintiff
401 Broadway, Ste 306
New York, NY 10013
212 431 6680

TO: NYS Department of State

Costco Headquarter
999 Lake Drive
Issaquah, WA 98027

Costco Store
976 3rd Ave,
Brooklyn, NY 11232

LP Agent Guylin A. Raymond
976 3rd Ave,
Brooklyn, NY 11232

NYC Corporation Counsel
100 Church Street, NY, NY 10007

NYC Police Department
1 Police Plaza, New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

COLLIS AUGUST,

Plaintiff,

COMPLAINT

-against-

Index No.

**NEW YORK CITY, NEW YORK CITY POLICE
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WHOLESALE MEMBERSHIP, INC., and LOSS
PREVENTION agent Guylin A. Raymond,**

Defendants.

The plaintiff, complaining of the defendants, by his attorney, Jules Sack, respectfully
shows to this Court and alleges:

1. That the plaintiff is an individual residing in the County of Kings, State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, the defendant, City of New York, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant, City of New York, its agents, servant and employees operated, maintained and controlled the New York City Police Department (NYPD), including all the police officers thereof, and that the defendant City of New York is vicariously liable for the violations of New York State tort law by its servants, agents and employees via the principle of respondeat superior as at all times

relevant all defendant officers were acting for, upon and in furtherance of the business of their employer and within the scope of their employment.

4. Upon information and belief, that at all times hereinafter mentioned, defendants, PO Jorge Santacruz, Lieutenant Joseph Pizzuto, and Sgt. Alcaraz were employed by the defendant, City of New York, as police officers.
5. The New York City Police Department, is a local governmental agency, duly formed and operating under and by virtue of the Laws and Constitution of the State of New York and the defendant, City of New York, is responsible for the policies, practices and customs of the New York City Police Department as well as the hiring, screening, training, supervising, controlling and disciplining of its police officers and civilian employees.
6. Costco Wholesale Corporation a/k/a Costco Wholesale Membership, Inc. ("Costco") is a California Corporation authorized to do business in the State of New York.
7. Guylin G. Raymond is a Loss Prevention Agent ("LPA") employed by Costco Wholesale Membership Inc.
8. Costco is legally responsible for the tortious acts of its employees including Guylin G. Raymond.
9. All acts complained of herein took place within the scope of Guylin G. Raymond's employment.
10. Each and all of the acts of the municipal defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them as individuals, and/or under the color and pretense of the statutes, ordinances,

regulations, customs and usages of the State of New York, the City of New York, and under the authority of their officer as police officers and detectives of said state, and city.

FACTUAL ALLEGATIONS

11. Upon information and belief, Costco engages in a pattern and practice of profiling African American shoppers as suspected criminals.
12. Costco's security directors and security managers authorize the conduct of Costco's employees.
13. Costco's management incites the LPAs to detain individuals without probable cause.
14. Costco's LPAs are encouraged to make a certain number of detentions every week.
15. Upon information and belief, the LPAs are required to detain at least five people per week.
16. Upon information and belief, Costco's management engages in incentive programs to encouraging LPAs to increase the number of shopper detentions leading to unlawful arrests.
17. On April 8, 2014 at approximately 12:20 P.M. plaintiff was shopping in the Costco store located at 976 Third Avenue, Kings County, New York City.
18. Plaintiff purchased and paid for various items totaling \$718.
19. Defendant Guylin G. Raymond acting as a LPA prevented Plaintiff from leaving the store.

20. Defendant Raymond accused the Plaintiff Collis August of shoplifting.
21. Plaintiff Collis August was detained in the Costco detention area.
22. Plaintiff showed the receipt for payment of the items purchased to Defendant Raymond.
23. Plaintiff Collis August was not permitted to leave.
24. Plaintiff again showed the Costco receipt for payment to police officer Jorge Santacruz.
25. Without engaging in any further investigation, and without any probable cause that any crime has been committed by Plaintiff, Defendant Jorge Santacruz arrested the Plaintiff and took him to the 72nd police precinct.
26. Plaintiff was given a desk appearance ticket requiring him to appear at the Red Hook Community Court, in Brooklyn, New York.
27. Plaintiff was charged with Petit Larceny (P.L. 155.25) and Criminal Possession of Stolen Property in the Fifth Degree (P.L. 165.40).
28. These charges were based upon a sworn statement that Plaintiff had committed Petit Larceny/Criminal Possession of Stolen Property.
29. LPA Guylin Raymond stated in a sworn statement that he observed Plaintiff attempt to leave Costco without paying for \$718 worth of merchandise.
30. Defendant Guylin Raymond's statement was false.
31. The Kings County District Attorney's Office dismissed the criminal case against the Plaintiff on the merits.
32. A Notice of Claim was served upon the City of New York, and the New York City Police Department on December 4, 2014.

33. A hearing pursuant to General Municipal Law §50-h was held on March 12, 2015.
34. More than 30 days have elapsed and no defendant has adjusted this claim.

AS AN FOR A FIRST CAUSE OF ACTION

***42 USC §1983 Violation of Right to be Free from Unreasonable Searches and Seizures and
State Law Claim of Violation of Article I §12 of the New York State Constitution
Against Municipal Defendants***

35. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-34 as if fully set forth herein.
36. On April 8, 2014, the defendants deprived plaintiff, under color of statute, ordinance, regulation, custom or usage, of a right, privilege, and immunity secured to plaintiff by the Fourth and Fourteen amendments to the Consitution of the United States, 42 U. S. C. § 1983 et seq., Article I, § 12 of the Constitution of the State of New York, New York Civil Rights Law, Article 2 and § 40(c).
37. At the aforementioned time and place, defendants denied plaintiff his right to be free from unlawful searches and seizures by illegally searching him and arresting him based upon no evidence.
38. This unlawful search, seizure and arrest of the plaintiff are part of a longstanding pattern of harassment abuse, brutality, assaultive conduct, discrimination, unlawful stops, seizures and searches and arrests. This pattern and practice was the result of institutionalized tolerance and indifference, improper and unreasonable hiring, training, supervision and discipline and from the use of arrest quotas. This pattern and practice was allowed to continue because of the deliberate indifference of policy making officials.

39. Thus, plaintiff was deprived of his rights, privileges and immunities under the Fourth and Fourteenth Amendments of the United States Constitution being more particularly described as plaintiff's rights: to be secure in his person, papers and effects against unreasonable searches and seizures; and, not to be deprived of life, liberty, and property without due process of law.
40. That the said violation of plaintiff's rights was caused by the Municipal defendants, their agents, servants and employees, without justification or provocation, any warrant or other legal process and without authority of the law.
41. That the defendants, their agents, servants and employees acting within the scope of their authority and within the scope of their employment, conducted unlawful searches of plaintiff and his property, even though the defendants, their agents, servants, and employees, had the opportunity to know or should have know that their conduct was unlawful, unjustified and unprovoked and that no probable or reasonable cause or exigent circumstances existed for the searches conducted.
42. That the defendants conspired together to violate plaintiff's rights in that the individual defendants acted in concert to unlawfully violate plaintiff's rights. Said conspiracy included the overt acts of unlawfully searching the plaintiff and his property.
43. That by reason of the unlawful violations of plaintiff's rights, plaintiff was subjected to great injuries, indignities, humiliation and ridicule, and greatly injured in his credit and circumstances and was then and there prevented and hindered from performing and transacting his necessary affairs and business, he was caused to suffer injury and pain and other financial losses.

44. That by reason of the aforesaid, plaintiff has been damaged in the sum to be determined upon the trial of this action, but in no event less than the lower jurisdictional limit of this Court.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF

Malicious Prosecution against all defendants

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-44 with the same force and effect as is more fully set forth herein.
46. As set forth supra a criminal prosecution was instituted and continued against the Plaintiff.
47. Such proceeding was terminated in plaintiff's favor through dismissal and sealing of all charges against him.
48. There was an absence of probable cause to commence the proceeding.
49. There was actual malice as evidenced by the lack of probable cause in the first instance.
50. As a result, plaintiff has been damaged in the sum to be determined upon the trial of this action, but in no event less than the lower jurisdictional limit of this Court.

AS AND FOR A THIRD CAUSE OF ACTION

False Arrest/False Imprisonment against all defendants

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-50 with the same force and effect as is more fully set forth herein.
52. The acts of each of the defendants as set out supra, demonstrate their intent to confine plaintiff.

- 53. Plaintiff was conscious of his confinement.
- 54. Plaintiff did not consent to being confined.
- 55. Plaintiff's confinement was not privileged.
- 56. As a result of the aforesaid actions of the defendants, their agents, servants and employees, investigative, law enforcement or otherwise, acting within the scope of their employment and within the scope of their authority, done unlawfully and without justification or provocation by plaintiff, plaintiff was caused to suffer serious personal and economic injuries, some of which, upon information and belief, are permanent in nature.

FOURTH CAUSE OF ACTION

Negligent Hiring, Firing, and Supervision of Employees As against Costco

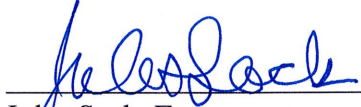
- 57. Plaintiff incorporates by reference paragraphs 1 through 56, as if fully set forth herein.
- 58. Defendant Costco has a duty to supervise its security personnel, and prevent security personnel from engaging in tortious and unlawful conduct.
- 59. Defendant Costco negligently and/or recklessly failed to satisfy their duty of care in hiring, supervising, and retaining personnel that engaged in tortious and unlawful conduct.
- 60. Defendant knew or should have known that the security personnel at Costco has engaged in previous false imprisonments and malicious prosecutions.
- 61. Defendant knew or should have known that their policies and practices have created an unreasonable risk of unlawful and/or tortious conduct.

62. As a result of the Defendant's conduct, Collis August has suffered and continues to suffer compensatory damages.

63. As a result of Defendant's willful, wanton, and reckless disregard for Collis August, Plaintiff is seeking punitive damages.

WHEREFORE, plaintiff Collins August demands judgment against the defendants in the sum to be determined upon a trial of this action on each cause of action, and reasonable attorney's fees; together with costs and disbursements of this action; a trial by jury of all issues involved in this complaint; and such other and further relief as this Court may deem just and proper under the circumstances.

Dated: New York, New York
April 3, 2015



Jules Sack, Esq.
Attorney for Plaintiff
401 Broadway, Ste 306
New York, New York 10013
(212) 431 6680
(212) 966-0588 (fax)